

Tarivitla Jagannadham vs U.Ramakrishna Raju on 5 August, 2022

Author: C.Praveen Kumar

Bench: C.Praveen Kumar

CPK, J & NV, J
F.C.A. No. 3 of 2018 & batch

THE HONOURABLE SRI JUSTICE C.PRAVEEN KUMAR
AND
THE HONOURABLE SRI JUSTICE VENKATESWARLU NIMMAGADDA

F.C.A. No. 03 of 2018
F.C.A. No. 216 of 2018
AND
F.C.A. No. 133 of 2019

COMMON JUDGMENT:

(Per Hon'ble Sri Justice C.Praveen Kumar)

1) As these three F.C.A's are inter connected and between same parties, they are disposed of by this Common Judgment.

2) F.C.A. No. 3 of 2018 and F.C.A. No. 216 of 2018 are filed against Common Order, dated 31.08.2017, in F.C.O.P. No. 1265 of 2011; while F.C.A. No.133 of 2019 is filed against Order passed in F.C.O.P. No. 143 of 2011. The Appellant in F.C.A. No. 3 of 2018 is the Second Respondent, while Appellant in F.C.A. No.216 of 2018 is the First Respondent, in F.C.O.P. No.1265 of 2011.

3) F.C.O.P. No. 1265 of 2011 was filed by the Husband/Petitioner seeking declaration of title over the two properties covered by petition "A" & "B" Schedule Properties; for consequential relief of setting aside the Sale Deed executed in favor of Respondent No. 2 in respect of "B" Schedule Property; and for permanent injunction restraining Respondent No.1 from executing any documents in favor of CPK, J & NV, J F.C.A. No. 3 of 2018 & batch Respondent No.2 or any person in respect of petition "A" & "B" Schedule Properties.

4) The Additional Family Court, Visakhapatnam, by its Judgment, dated 31.08.2017 in F.C.O.P. No. 1265 of 2011 filed under Section 7(i)(c) of Family Court Act, allowed the O.P. declaring the Petitioner-Husband as the absolute owner of Petition "A" & "B" Schedule Property, and the Sale Deed executed by Respondent No. 1 in favor of Respondent No. 2 with respect to Petition "B" Schedule Property was set-aside, and accordingly granted permanent injunction restraining

Respondent No. 1 from executing documents in favor of Respondent No. 2 or any person in respect of Petition "A" & "B" Schedule Property.

5) F.C.A. No.3 of 2018 is filed by one Tarivittla Jagannadham and F.C.A. No.216 of 2018 is filed by Petitioner-Wife against the Common Order, dated 31.08.2017, passed in F.C.O.P. No. 1265 of 2011 aggrieved by the finding in declaring the Husband/Petitioner as the absolute owner of Petition "A" & "B" Schedule Property and setting aside the Sale Deed executed by Wife/Respondent No.1 in favor of Respondent No. 2 [Tarivittla Jagannadham] as illegal and arbitrary.

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6) F.C.O.P. No. 143 of 2011 is filed by the Petitioner-Wife seeking divorce under Section 13(1)(ia) of Hindu Marriage Act, and for permanent alimony of Rs.15,00,000/- [Rupees Fifteen Lakhs Only]. By its Judgment, dated 31.08.2017, the Family Court at Visakhapatnam, granted divorce dissolving the marriage between the Petitioner-Wife and Respondent- Husband, performed on 18.02.1984 on the ground of 'cruelty', while rejecting the request made by the Petitioner-Wife for permanent alimony.

7) No appeal is filed by the Respondent-Husband. However, the Petitioner-Wife filed F.C.A. No. 133 of 2019 questioning the refusal of permanent alimony.

8) It is also to be noted that, F.C.O.P. No. 1181 of 2011 is filed by the Petitioner-Wife under Section 125 Cr.P.C., seeking maintenance @ Rs.15,000/- per month for her livelihood, and Rs. 5,000/- per month for medical and other expenditure. While allowing the said petition, the trial Court directed the Respondent-Husband to pay a sum of Rs.7,500/- per month to the Petitioner-Wife towards maintenance for her livelihood, medical and other expenditure from the date of petition i.e., 07.06.2011. The Respondent-Husband was directed to pay monthly maintenance along with arrears of maintenance in twelve [12] equal monthly installments and the first of such installment shall be made on or before 10.10.2017. The CPK, J & NV, J F.C.A. No. 3 of 2018 & batch Respondent-Husband did not challenge the said order and even the Petitioner-Wife did not challenge the order seeking enhancement. Therefore, the said Order granting maintenance @ Rs.7,500/- per month has become final as it is not challenged. In fact, no appeal is preferred against the Order granting of divorce by the wife.

9) To sum up, there is no revision or appeal filed against the Order passed in F.C.O.P. No. 1181 of 2011 wherein maintenance was awarded under Section 125 Cr.P.C. The two appeals, F.C.A. No. 216 of 2018 and F.C.A. No. 133 of 2019 are filed by the Petitioner-Wife, while F.C.A. No. 3 of 2018 is filed by one Tarivittla Jagannadham. It is also to be noted that, all the F.C.O.P. Nos. 143 of 2011, 1181 of 2011 & 1265 of 2011 are clubbed together and the evidence is recorded in F.C.O.P. No.143 of 2011 and a common trial was conducted in all three cases.

10) The facts, in issue, are as under:

- i. The marriage between the Petitioner-Wife and Respondent-Husband was performed on 18.02.1984 at Simhachalam, Visakhapatnam, as per Hindu rites and

customs. It is said that, they had no issues, but, however, both of them lived happily for sometime and later disputes arose since the Respondent-Husband CPK, J & NV, J F.C.A. No. 3 of 2018 & batch used to give more importance to his family members and has been spending huge amounts on them neglecting the family members of the Petitioner-Wife. It is alleged that, whenever the Petitioner-Wife used to question the Respondent-Husband about his behavior, he used to beat her. Having regard to disputes between them and as the differences between both of them became severe, she filed F.C.O.P. No. 143 of 2011 seeking divorce, which was allowed, but, however, the request for permanent alimony was rejected.

ii. Coming to the issue relating to payment of permanent alimony of Rs.15,00,000/- (F.C.O.P. No. 143 of 2011), the Respondent-Husband filed counter stating that, he was working in Hindustan Shipyard Limited, drawing a salary of Rs.140/- per month and at the time of marriage in 1984 he was drawing a salary of Rs.900/-

per month, which was just sufficient to make both ends meet. It is said that, his mother, brother and sister used to stay in a village near Vizianagaram, where, his brother used to look after the welfare of all the family members and that he never took any responsibility to maintain his mother and others due to mean mentality of Petitioner-Wife, as she used to harass him from day one of marriage. In spite of the same, the Respondent-

CPK, J & NV, J F.C.A. No. 3 of 2018 & batch Husband used to look after the welfare of the Petitioner-

Wife, her mother, father and brothers, who stayed as joint family from 1986 to 2000. It is said that, in spite of spending substantial amount to the treatment, they could not begot any children, because of which, the Petitioner-Wife developed mental imbalance and started harassing him. It is said that, he purchased a site in Rajeevnagar and also a house in Rajeevnagar, which are in his name. Believing that Petitioner-wife will be his life partner till his death, purchased a site in Duvvada and a Flat in Marripalem in her name; apart from purchasing 10 tulas of gold to her from the date of marriage. It is his case that, from 2003, both of them are staying in the same Flat at Marripalem and since three years prior to filing of O.P., she developed adamant behavior towards him at the instigation of her brothers, mother and sister.

11) (i) F.C.O.P. No. 1265 of 2011 was filed on 31.10.2011 by the Petitioner-Husband praying to declare him as the absolute owner of the Petition "A" & "B" Schedule Properties, which is Flat No. 203 in Sai Hills at Marripalem, GVMC Limits, and a vacant house site in Survey No. 41/5, Plot No. 37 at Duvvada Village, purchased on 11.12.2003 and 30.07.2001, respectively. It is his case that, the Respondent-

CPK, J & NV, J F.C.A. No. 3 of 2018 & batch Wife lived with him till 26.09.2011 and, thereafter, left him on 27.09.2011, to her brother's house without any intimation, with a dishonest intention to

execute some documents with the aid and assistance of her relatives in the name of Second Respondent therein, who is the Appellant in F.C.A. No. 3 of 2018.

(ii) It is his case that, with the hard earned earnings, he purchased Petition "A" & "B" Schedule Properties in the name of Respondent-Wife due to fiduciary relationship between him and her. The Petitioner-Husband is said to have discharged the loans obtained by him for purchase of Petition "A" & "B" Schedule Properties, from his salary and that Benami Act has no application relating to "A" & "B" Schedule Properties. Hence, O.P. is filed under Section 7(1)(c) of Family Courts Act, to declare him as the absolute owner of the property and consequential reliefs therein. Later on, an amendment petition was filed seeking to set aside the Sale Deed, dated 19.10.2011, executed by Respondent-Wife in favor of Respondent No. 2 and also for permanent injunction restraining the Respondent-Wife from executing any document in the name of Respondent No. 2 or any other person. The said amendment petition was allowed on 15.02.2013 and the same was not challenged.

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(iii) The right to file counter by Respondent-Wife was forfeited on 22.05.2013, as she failed to file counter.

(iv) A Counter came to be filed by Second Respondent [purchaser] stating that the Petition is barred by limitation and that there are no merits in the Petition. It is said that, since the owner of the property executed the Sale Deed in his favor, the Respondent-Husband cannot claim any legal right over the property. It is his case that he purchased the property through his earnings and got the same registered vide document bearing No. 3640 of 2011, dated 19.10.2011, from Petitioner-Wife [R1] for a valuable consideration and got constructed boundary wall and also laid an asbestos roofed shed. It is said that because of differences with Petitioner- Wife, the Respondent-Husband who is aware of all the transaction, sought for cancellation of sale deed, which is unwarranted.

12) The issues that arise for determination is:

(i) Whether the trial Court was right in entertaining the suit under Section 7 of the Family Courts Act, when the third party rights are involved;

(ii) Whether the trial Court was right in setting aside the sale deed executed by Petitioner-Wife in favor of Appellant in F.C.A. No. 3 of 2018, who is the third party purchaser; and CPK, J & NV, J F.C.A. No. 3 of 2018 & batch

(iii) Whether the trial Court was right in rejecting the claim of the Petitioner-Wife of permanent alimony?

13) During the course of trial, the Appellant -Wife examined herself as PW1, while Respondent-Husband got examined himself as RW2 along with two other witnesses as RW3 and RW4. About 27 documents were marked by the Petitioner-

Wife as Ex.A1 to Ex.A27, while Ex.B1 to B72 documents came to be marked on behalf of Respondent-Husband.

14) Sri. S.A.V. Ratnam, learned Counsel for the Appellant- Wife submits that, the Respondent-Husband is having substantial amount for paying permanent alimony as he worked in Hindustan Shipyard Limited and getting pension now, apart from a rent of Rs.5,000/- per month from the house situated at Rajeevnagar. It is further urged that, Respondent-Husband is having houses in and around Visakhapatnam. It is pleaded that, with a view to avoid payment of money, he got a case filed against him through his mother vide M.C. No. 20 of 2012 and later on, got it settled before Lok Adalat within two months from the date of filing the petition. It is her case that, the Respondent- Husband is troubling the Petitioner-Wife at this length of time by filing cases and that the property so purchased by him from VUDA on 11.03.1998 is worth of Rs.30,00,000/-. She also refers to the registered Sale Deeds dated, 14.12.2000 and CPK, J & NV, J F.C.A. No. 3 of 2018 & batch 11.03.1998, which are marked as Ex.A25 and Ex.A26, in support of her plea.

15) Relying upon Section 15 of the Hindu Succession Act and Sub-Section 2 of Section 3 of the Benami Transaction (Prohibition) Act, 1988, which gives exception to benami transaction in favor of wife or unmarried daughter, would contend that, it is a clear case of "Gift" covered under Section 14 of Hindu Succession Act, since the case of the Respondent-Husband is that, he purchased the property out of love and affection for his wife i.e., for the benefit of his wife. According to her, the Court erred in holding that the property was not purchased for the benefit of the wife, in view of Section 25 of the Hindu Marriage Act. It is further urged that, Section 24 of the Hindu Marriage Act, empowers the Court to grant permanent alimony at the time of deciding the divorce O.P. and, as such, the wife is entitled for permanent alimony.

16) (i) The Respondent-Husband, who is appearing in person strongly opposed the same and disputes the claim made by the Petitioner-Wife. He placed on record, the Written Arguments running into 31 pages, in support of his plea. A perusal of the Written Arguments would show that he paid the total consideration for sale transaction, by taking loans and got the property registered in the name of his wife, who sold the same without his knowledge.

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(ii) It is his case that, his wife claims to have purchased the property in the year 2001 [Ex.B15] from the money given by her father and mother, which is absolutely incorrect, for the reason that, her father expired in the year 1995. According to him, his wife admits in evidence that, she sold the site at Duvvada [one of the schedule property in O.P. No.1265 of 2011] and got huge amount and thereafter, she started maintaining a bank account, holding fixed deposits and dealing with shares, etc., which is evident from Exs.B30, B31 and B32. In view of the above, he would contend that, the argument of his wife that she is a helpless woman is incorrect. She has various financial resources to make a good living. He further submits that, D.V.C. No. 20 of 2012 filed by her for maintenance and other benefits was dismissed, which is sufficient to show that she has enough money to maintain herself.

(iii) Coming to purchase of Petition "A" & "B" Schedule Properties in the name of Petitioner-Wife, he would contend that, his wife did not file any counter to deny the averments made in the affidavit and hence it is deemed that she has admitted the contents of the petition, though, Second Respondent filed his counter denying the same, but, he is not the proper person to speak about the investments made by the Respondent-Husband for purchase of property. The CPK, J & NV, J F.C.A. No. 3 of 2018 & batch allegation that there was collusion between the Petitioner- Wife and Respondent-Husband is absolutely false. If really there was collusion, there was no necessity to fight tooth and nail for some many years. According to him, the evidence of RW2 [himself] gets corroboration from the evidence of RW3 and RW4 and Ex.B12 and Ex.B13, etc. to show that he has purchased the property with his own funds in the name of his wife. According to him, his wife who was examined as PW1 failed to prove that Petition "A" & "B" Schedule Properties are her properties, as urged by her. No documentary evidence was placed on record to prove the same. He further submits that, after knowing that a notice was issued to Petitioner-Wife in I.A. No. 420 of 2011 in O.P. No. 143 of 2011 on 26.09.2011, she hurriedly sold the "B" Schedule Property to Second Respondent herein; however, the Petitioner-Husband took precaution by erecting a caution board mentioning the pendency of dispute before Family Court, apart from publishing notice in regional newspapers. Since, the property came to be purchased pending litigation, the purchasers of the property cannot claim absolute right over the property. The doctrine of lis pendens attracts and the purchaser has to suffer for his misadventure. He took us through Exs.B11, B12, B13, B15, B16, B18, B19, B22 to B30, B33, etc. to establish that he took loan, which was used for purchase of the property.

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17) (i) On the other hand, Sri. Mangena Sree Rama Rao, learned Counsel appearing for the Appellant in F.C.A. No. 3 of 2018 would submit that, the Appellant, who is a third party has purchased the property for a valuable consideration from Second Respondent-Wife. According to him, the Appellant paid upto Rs.13,00,000/- to Second Respondent-Wife, though the market value of the property as shown in the document is Rs.6,00,000/-. According to him, after accepting the money, she colluded with her husband and got registration of the document set-aside. It is his case that, proceedings before the Family Court are collusive in nature, which is evident from the fact that even after divorce, the husband and wife are living together under the same roof in Karsa locality, Visakhapatnam. He further submits that, the Family Court has jurisdiction to decide the dispute between spouses including property disputes, but cannot cancel the sale deed executed in the name of third party, who is the Appellant herein, for the reason that the Appellant does not come within the purview of the Family Court or within the meaning of the parties, as defined under Section 7 of the Family Court Act. The First Respondent-Husband ought to have filed a separate Suit for setting aside the sale deed. He further submits that, the documents produced are not true, as the persons who executed the documents are not examined, more particularly, CPK, J & NV, J F.C.A. No. 3 of 2018 & batch Ex.B19 to Ex.B21, which are the letters showing sanction of loan on Provident Fund.

(ii) The learned Counsel would submit that the Appellant was not aware about the pendency of litigation between wife and husband, but after verification of entire record he purchased the property from Second Respondent-Wife. Since, the Second Respondent-Wife is the absolute owner

of the property, the First Respondent-Husband has no right to challenge the document standing in the name of his wife. He further submits that, there is a bar in the Family Court Act and Hindu Succession Act, for setting aside the document, which is in the name Second Respondent-Wife. He relied upon certain judgments in support of his plea. I. Issue No. (i) - Whether the trial Court was right in entertaining the suit filed under Section 7 of the Family Courts Act, when third party rights are involved?

18) In order to appreciate the same, it would be appropriate to refer to Sections 7 & 8 of the Family Courts Act, 1984.

"Section 7 & 8 of the Act of 1984 to the extent it is relevant reads as under:

7. Jurisdiction (1) Subject to the other provisions of this Act, a Family Court shall,--

(a) have and exercise all the jurisdiction exercisable by any district court or any subordinate civil court under any law for the CPK, J & NV, J F.C.A. No. 3 of 2018 & batch time being in force in respect of suits and proceedings of the nature referred to in the explanation; and

(b) be deemed, for the purposes of exercising such jurisdiction under such law, to be a district court or, as the case may be, such subordinate civil court for the area to which the jurisdiction of the Family Court extends. Explanation: The suits and proceedings referred to in this sub-section are suits and proceedings of the following nature, namely,--

(a)

(b)

(c) a suit or proceeding between the parties to a marriage with respect to the property of the parties or of either of them;

(d) a suit or proceeding for an order or injunction in circumstance arising out of a marital relationship;

(e)

(f)

(g)

8. Exclusion of jurisdiction and Pending Proceedings- Where a Family Court has been established for any area:-

(a) no district court or any subordinate civil court referred to in sub-section (1) of section 7 shall, in relation to such area, have or exercise any jurisdiction in respect of

any suit or proceeding of the nature referred to in the Explanation to that sub-section;

(b)

(c)

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19) A bare perusal of Explanation (c) indicates that, "a suit or proceedings between the husband and wife with respect to the properties of the parties or of either of them" are covered there-under.

20) Explanation (d) to Section 7(1) reads that, "a suit or proceeding for an order or injunction in circumstance arising out of a marital relationship", can be entertained by the Family Court.

21) The jurisdiction of the Family Court to entertain a dispute came up for consideration before a Division Bench of combined High Court for the State of Telangana and Andhra Pradesh in P. Srihari v. P. Sukunda And Another¹, wherein, it disagreed with the view taken in P.Venkatarama Reddy J. Smt. Izzat Sultana v. Sabir Bin Yasrab², and affirmed the view taken in Mrs. Mariamma Ninan v. Mr. K.K. Ninan³. The Division Bench in paragraph Nos. 5 and 6 of the judgment held as under:

"5. In view of the above, the essential ingredient should be a dispute between the husband and the wife and the said dispute can be with regard to their marital status, divorce, restitution of conjugal rights, judicial separation, child custody, maintenance, as 2001 (2) ALD 72 1995 (3) ALT 430 1997 (2) ALT 268 CPK, J & NV, J F.C.A. No. 3 of 2018 & batch also property sharing. But, in no event, the Family Court can have jurisdiction if the above dispute is absent. By no stretch of imagination, can the Family Court assume jurisdiction, if there is a dispute between the brothers, sisters, mothers, fathers etc., concerning property and the case on hand being one such, the Family Court had clearly no jurisdiction.

6. For the reasons mentioned above, the judgment rendered by the learned single Judge in Smt. Izzat Sultana's case (supra) cannot be said to have laid down correct law. Hence, it is overruled and the view taken by the Division Bench in Mrs. Mariamma's case (supra) is followed. Consequently, the civil revision petition is allowed. The plaint be returned to the respondents herein for presentation before the Court of the I Additional Judge, City, Civil Court, Hyderabad, which Court is vested with both territorial and pecuniary jurisdiction."

22) The Hon'ble Supreme Court in K.A. Abdul Jaleel v. T.A. Shahida⁴, dealt with the issue as to whether a Suit under Section 7(1) Explanation (c) of the Act of 1984 could be instituted before the Family Court only if the marriage was subsisting. Answering in negative, held that even after divorce, the parties can approach the Court. This Judgment, in our view, may not apply to the case on hand. However, in Shyni v. George⁵ a learned Single Judge of the Kerala High Court after taking

into consideration the provisions of the Act and the scheme, observed as under:

(2003) 4 SCC 166 AIR 1997 Ker 231 CPK, J & NV, J F.C.A. No. 3 of 2018 & batch "5. On the scheme of the Act and considering the conferment of jurisdiction on the Family Court, it is clear that a suit or proceeding between the parties to a marriage with respect to the property of the parties or either of them comes within the purview of the Family Court. When a wife sues her husband for recovery of her property or which she claims to be her property, obviously the suit could be tried and disposed of only by the Family Court and when in such a suit the wife is, obliged to add a close relative of their husband or even a stranger on the allegation that the husband had made over the property to that close relative or stranger, it will be too much to hold that the jurisdiction of the Family Court is ousted to deal with the claim of the plaintiff in view of the mere presence of the stranger or the close relative of the husband. In such a situation, the close relative of the husband or the stranger could only be the agent of the husband or a confidant of the husband holding the property claimed by the wife on behalf of the husband. It is not possible to accept the argument that in such a circumstance also the wife would be obliged to file the suit against the stranger in an ordinary Civil Court even while she is forced to maintain her suit against the husband in the Family Court. Would it make any difference if in a given case, the property of the wife was entrusted not merely to the husband but also to a close relative of the husband, in this case, the father-in-law? I think that it will be the very negation of the scheme of the Family Court Act and the attempt made by that Act to constitute a Special Civil Court for the purpose of dealing with all matrimonial disputes including dispute about property to hold that the wife would not be entitled to maintain a suit for recovery of her property against the father-in-law in the Family Court. If it were merely a suit against the father-in-

law it is quite clear that the suit could be instituted only in the ordinary Civil Court. Equally, if it is CPK, J & NV, J F.C.A. No. 3 of 2018 & batch merely a suit against the husband for recovery of property, the same could only be maintained in the Family Court. In a case where the claims have to be combined or the same has to be made against both the husband and the father-in-law as in the present case, could it be said that the jurisdiction of the Family Court would stand ousted? My answer is an emphatic no."

23) A reading of the above judgment makes it clear that in a given set of circumstances, a Suit can be filed even against a stranger. Though, Sri. Mangena Sree Rama Rao, learned Counsel for the Petitioner relied upon a judgment of the Hon'ble Supreme Court in Anil Kumar Goel v. Rekha Goel and Another⁶, but, in our view, the said Judgment may not apply to the case on hand. It was a case where the husband filed a Suit against his wife seeking declaration/cancellation of documents, permanent and mandatory injunction. The case of the husband is that the wife had fraudulently got certain documents executed by his father transferring the property in favour of the wife. These documents were challenged in the Suit filed by the husband. By an Order, the learned Additional District Judge transferred the Suit to the Family Court on the ground that the same is covered under Section 7(1)(c) of the Family Courts Act, which was impugned before the Delhi High Court. After

referring to the authorities (2019) Supreme (Del) 2178 CPK, J & NV, J F.C.A. No. 3 of 2018 & batch on the subject and the judgment of the Kerala High Court and taking into consideration the facts in issue and, more particularly, the claim of the siblings of the Petitioners and as dispute is not in between husband and wife at the time of institution of the suit, held that the Family Court has no jurisdiction.

24) The second judgment relied upon by Sri. Mangena Sree Rama Rao, learned Counsel for the Petitioner is Mrs.Sandhya Shankar @ Sandhya Goni W/o. Sri Ashok Goni v. Sri Ashok S. Goni⁷. In the instant case, the dispute was as to whether the Suit filed by the Appellant against the first Respondent arising out of marital relationship between the two, as wife and husband or whether the dispute has arisen on account of the execution of power of attorney by the appellant in favour of first respondent. The execution of power of attorney in the said case was not based on marital relationship between the parties. Neither there was a marital cause which arose between the parties in relation to the suit schedule property. The test that was applied in the said case was, whether, the appellant-plaintiff could have executed a power of attorney vis-à-vis the suit schedule property in favour of any party or person or on account of her marriage with first respondent and on account of the marital (2019) Supreme (Kar) 1668 CPK, J & NV, J F.C.A. No. 3 of 2018 & batch relationship had to execute the said power of attorney in favour of first respondent only. Under those circumstances, the order of the trial Court rejecting the plaint holding that, it has no jurisdiction to deal with the subject and that the matter has to be dealt with by a competent Court, which came to be rejected by the Hon'ble High Court holding that, though, the first Respondent is the wife of the Appellant herein, but the power of attorney was executed in favor of the first Respondent not out of any marital cause.

25) However, the Delhi High Court in Avneet Kaur v. Sadhu Singh and Another⁸ had an occasion to deal with Explanation (d) to Section 7(1) of the Family Courts Act. The Court after holding that, a reading of the Explanation (d) gives a clear indication that a suit or proceedings for an order or an injunction lies exclusively before the Family Court, observed as under:

21. Unquestionably, the dispute in this case revolves around Clause (d) of explanation to Section 7 (1) of the Family Courts Act. A mere glance at the provision indicates that it has been worded in careful and cautious terms. It states that a suit or proceeding for an order or injunction in circumstances arising out of a marital relationship would lie exclusively before the Family Court.

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22. What has to be seen is whether the circumstances in which the order or injunction is sought in the present case arise out of a marital relationship. The test is not whether the cause of action, forming the basis of the prayer for injunction, arises out of a marital relationship or whether the marital relationship is the reason for the grievance ventilated by the plaintiff. All that has to be seen are the circumstances in which the injunction is sought. Once the Court identifies the circumstances, if those circumstances arise out of a marital relationship, Clause (d) of the

Explanation to Section 7 (1) of the Family Courts Act would ipso facto be attracted.

23. Explanation (d) in Section 7 (1) of the Family Courts Act does not, either expressly or by necessary implication, require the parties to the lis to be husband and wife. Clearly, in so opining, the learned SCJ has effectively re-written the statutory provision. There is nothing in Clause (d) of the explanation to Section 7 (1) of the Family Courts Act in which indicates that the clause would apply only where the litigation is between husband and wife. For the clause to apply, all that is required is that (i) there is a marital relationship, (ii) the marital relationship has resulted in a certain set of circumstances and

(iii) the order or injunction which is sought in the suit is sought in those circumstances".

26) From a reading of the said judgment, it is very clear that Explanation (d) to Section 7 does not, either expressly or by necessary implication, require the parties to the lis, to be husband and wife. There is nothing in Clause (d) of the Explanation to Section 7 (1) to show that it applies only where the litigation is between husband and wife. All that is CPK, J & NV, J F.C.A. No. 3 of 2018 & batch required is that there is a marital relationship and that the said marital relationship has resulted in certain set of circumstances, and one of the parties seek injunction or order in those circumstances. Therefore, seeking a direction against third party, who is neither a husband nor wife, cannot be a bar in all the circumstances, more particularly, in the given set of facts of the case.

27) Keeping in view the law laid down in the judgments referred to above, it is now to be seen, whether the trial Court was right in deciding the lis by invoking Section 7 of the Family Courts Act?

28) A perusal of the material on record, more particularly, the facts, which we have referred to earlier, clearly show that the husband herein filed F.C.O.P. No. 1265 of 2011 seeking declaration of title over the two properties covered by Petition Schedule "A" & "B" properties and to set-aside the Sale Deed executed in favor of Respondent No. 2 in respect of "B" Schedule Property and for an injunction in respect of "A" Schedule Property. This Suit was filed on 31.10.2011 along with I.A. No. 536 of 2011. An Order of "Status-Quo" came to be passed by the Hon'ble Court on 03.11.2011.

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29) It is also to be noted there that F.C.O.P. No. 143 of 2011 was filed by the Wife on 04.02.2011 seeking divorce under Section 13(1)(ia) of the Hindu Marriage Act; apart from claiming permanent alimony of Rs. 15,00,000/- [Rupees Fifteen Lakhs Only]. In the said Suit, the Husband filed I.A. No. 420 of 2011 on 26.09.2011 seeking temporary injunction restraining the wife from alienating the property. Notices were issued and the case was posted for counter on 01.11.2011. It appears that, on coming to know about the same, the wife taking advantage of the gap between the notice and the time for filing counter, sold the schedule property to the third party on 19.10.2011. However, a temporary injunction was granted on 15.07.2012.

30) From the above, it is clear that the dispute was between wife and husband from the date of institution of F.C.O.P. No.143 of 2011 i.e., 04.02.2011. The wife is said to have created third party

rights by selling "B" Schedule Property on 19.10.2011 i.e., pending the said O.P. and before divorce was granted. It appears from the record that, after the sale, the husband instituted F.C.O.P. No. 1265 of 2011 against his wife and also against third party.

31) As stated earlier, the peculiar circumstances in the instant case are that, the wife while staying with the husband till 26.09.2011, left him on 27.09.2011, without intimation, CPK, J & NV, J F.C.A. No. 3 of 2018 & batch and then executed a document. Later on, in F.C.O.P. No. 1265 of 2011, which was filed for an injunction against the wife, an amendment application came to be filed seeking to set-aside the Sale Deed, dated 19.10.2011, along with permanent injunction restraining the wife from executing any document in favor of second Respondent, which was allowed on 15.02.2013. Therefore, it is clear that in both the Suits there was an Order of injunction restraining the wife from executing any sale deed. But, by then, the Sale Deed was already executed. All the above has happened much prior to grant of divorce, which was on 31.08.2017. The relief sought for was against wife.

32) For the aforesaid reasons and taking into consideration the ratio laid down in the judgments referred to above, we are of the view that the Family Court was right in entertaining the Suit filed by the husband. Accordingly, Issue No. (i) is decided upholding the Order of the trial Court.

II. Issue No. (ii) - Whether the trial Court was right in setting aside the sale deed executed by Petitioner-Wife in favor of Appellant in F.C.A. No. 3 of 2018?

33) At this stage, it would be appropriate to refer to Section 14(1) & (2) of Hindu Succession Act and Section 3 of the Benami Transaction Act, which are as under:

CPK, J & NV, J F.C.A. No. 3 of 2018 & batch "Section 14 in The Hindu Succession Act, 1956

14. Property of a female Hindu to be her absolute property.--

(1) Any property possessed by a female Hindu, whether acquired before or after the commencement of this Act, shall be held by her as full owner thereof and not as a limited owner.

Explanation.--In this sub-section, "property" includes both movable and immovable property acquired by a female Hindu by inheritance or devise, or at a partition, or in lieu of maintenance or arrears of maintenance, or by gift from any person, whether a relative or not, before, at or after her marriage, or by her own skill or exertion, or by purchase or by prescription, or in any other manner whatsoever, and also any such property held by her as stridhana immediately before the commencement of this Act.

(2) Nothing contained in sub-section (1) shall apply to any property acquired by way of gift or under a will or any other instrument or under a decree or order of a civil court or under an award where the terms of the gift, will or other instrument or the decree, order or award prescribe a restricted

estate in such property.

Section 3 in The Benami Transactions (Prohibition) Act, 1988

3. Prohibition of benami transactions.-- (1) No person shall enter into any benami transaction. 1[(2) Nothing in sub-section (1) shall apply to--

(a) the purchase of property by any person in the name of his wife or unmarried daughter and it shall be presumed, unless the CPK, J & NV, J F.C.A. No. 3 of 2018 & batch contrary is proved, that the said property had been purchased for the benefit of the wife or the unmarried daughter;

(b) the securities held by a--

(i) depository as registered owner
under sub-section (1) of section 10 of
the Depositories Act, 1996

(ii) participant as an agent of a
depository. Explanation.--The
expressions "depository" and

"Participants shall have the meanings respectively assigned to them in clauses (e) and (g) of sub-section (1) of section 2 of the Depositories Act, 1996].

(3) Whoever enters into any benami transaction shall be punishable with imprisonment for a term which may extend to three years or with fine or with both.

(4) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), an offence under this section shall be non-cognizable and bailable.

34) It would also be necessary to refer to the evidence of PW1 and RW2, who are the Wife and Husband respectively.

35) Insofar as Petition "A" & "B" Schedule Properties are concerned, PW1 in her evidence states that, she purchased the property at Kurmannapalem and a house at Marripalem, VUDA Colony. According to her, due to certain debts and maintenance, she sold away the property at Duvvada for an amount of Rs. 6,00,000/- and discharged her debts. She thus CPK, J & NV, J F.C.A. No. 3 of 2018 & batch claims to have purchased the property with her stridhanam. She further deposed that, her husband purchased the property at Srinagar and Rajeevnagar, out of his earnings and loans obtained from his employer and that he is no way concerned with the property in dispute. In the cross- examination, she admits as under:

"It is not true to suggest that since the date of marriage my people are visiting my matrimonial house, that as I am not procured the children filed the cases against respondent and instigation of my relatives; that as I have no love and affection

towards respondent, filed the cases; that I am only interested in money nor having any human values; that out of love and affection respondent purchased house site in an extent 300 sq yards Duvvada and residential plot Vuda colony, Marripalem in my name, by taking loans from the financial institutions and from friends. Witness volunteers that she purchased them the money given by father and mother."

"In the year 2003 my mother gave Rs.5 lakhs in lump-sum to purchase the house in cash. There is no documentary proof to show the said payment. My father died on 2.8.1995. I cannot give the specific incidents which lead for serious differences between me and respondent because always he harassed me."

"It is true I sold away 300 sq yards of site at Duvvada on 19.10.2011. It is not true to suggest that the site at Duvvada was purchased for more than eight lakhs. I do not know when the respondent took loans from Provident Fund and for what purpose, including the loan from HDFC. The signatures shown to me in the loan agreement with HDFC are that of me. Ex.B1 are my signatures in c/c of loan agreement of HDFC.

CPK, J & NV, J F.C.A. No. 3 of 2018 & batch It is true the original documents of the house are with respondent. I maintained house with my expenses upto 2011."

"It is not true to suggest that respondent purchased the site by taking loan of Rs.48,000/- from the office and by raising loan of Rs.10,000/- from outsiders, that I did not purchase the site, that respondent not brought any signed stamp papers to the house nor obtained my signatures there on and that I am deposing false to make a wrongful gain; that in spite of injunction orders dated 15.7.2012 I.A. No. 420/2011 in O.P. No. 143/2011 on the file of this Court against me relating to the said site and during the pendency of injunction suit I sold away above said site. It is true respondent erected caution boards in the site not to sell the same in view of the matter pending in the court. Witness volunteers that she does not know when those boards were erected but by the date of sale they were not there in the site. I do not know that Respondent made a general notice to the public about the pending court proceedings in the Eenadu Paper cautioning not to purchase the site. It is true by the date of sale of the above site the original document and link documents are not with me and they are in the custody of respondent."

"I purchased the house bearing Dr. No. 58-14-43/12, Vuda Colony, Marripalem, Visakhapatnam, and the respondent negotiated the sale transaction on my behalf. By that time, I was with money. The respondent advised me to purchase the house, therefore I purchased the same. It is not true to suggest what I stated above is utter falsehood. It is true that on the same day of the bargaining he sale deed for the house is not executed. I do not know that respondent obtained agreement of sale in his name at the first instance on 26.10.2003 by giving advance of Rs. One lakh. It is not true to suggest that CPK, J & NV, J F.C.A. No. 3 of 2018 & batch respondent paid the

total consideration nor on his permission the sale deed was executed in my name. I do not know that the respondent borrowed Rs.1,41,408/- from the employer to purchase the house. Witness volunteers that having received Rs. Five lakhs from her the respondent created the loan documents etc. I do not know that respondent repaid the said sum by way of installments from the salary for the period from 2003 to June 2009. I do not know by borrowing Rs.2,38,.../- from the employer on 28-7- 2009 and by securing other amounts created the HDFC bank housing loan. I do not know that when respondent failed to pay the installment received notices sent by HDFC to the house nor I took those notices if the knowledge of respondent".

36) From the above admissions, she claims to have purchased the property from her stridhana and from the money given by her mother in the year 2003, but, at the same time, she admits that the sale deeds of these two properties are with her husband. It is also to be noted that, no evidence has been adduced by her to show the amount of stridhana that was given to her at the time of marriage and the value at which the property was purchased. She also admits about her husband raising loans from Provident Funds account and also HDFC bank. Further, Ex.B12, which is an Agreement of Sale, dated 26.10.2003, was executed by Kusuluri Prakasha Rao in favor of Uppalapati Ramakrishna Raju [husband] which was for Petition "A" Schedule Property. Though PW1 denies about the same, but a perusal of the agreement would show that it was executed in favor of her husband. It may be CPK, J & NV, J F.C.A. No. 3 of 2018 & batch true that the sale deed in respect of the said property was executed in favor of the wife, but initially the Agreement of Sale was in favour of her husband. So also with respect of Petition "B" Schedule Property. In fact, the answers elicited in the cross-examination of PW1 would show that, it was her husband who negotiated the sale transaction. It is also to be noted that, her evidence is silent as to whether the property was in her custody or used by her. On the other hand, documents relating to the property were with her husband.

37) Coming to the evidence of RW2, he in his evidence-in- chief deposed that, he purchased a house-site on 30.07.2001 in the name of his wife at Duvvada Village, by obtaining Provident Fund loan from his employer on 27.07.2001 and also hand loans. He further deposed that, in the year 2003, i.e., 11.12.2003, he purchased a Flat bearing No. 203 for a sum of Rs.4,75,000/- and spent about Rs.3,00,000/- for its development.

38) The evidence-in-chief of both the witnesses show that both of them claim to have purchased the property. Though PW1 in her evidence speak about purchasing the property from stridhanam and the money given by her mother, but there is no corroborating evidence to that effect. On the other hand, the plea of the Husband [RW2] is that he purchased the property appears to be probable, for the reason, that CPK, J & NV, J F.C.A. No. 3 of 2018 & batch substantial amount of money was obtained by him during that period, in the form of loans from his Provident Fund account and also from the Banks. He also categorically deposed that, his wife has no source of income of her own at the time of purchase. He further deposed that, from the date of purchase, he is in continuous possession and enjoyment of Petition "A" & "B" Schedule Properties and that he alone discharged the loan amounts from his salary account. It was further deposed by him that, his wife [PW1] never enjoyed the Petition "A" & "B" Schedule Properties with absolute rights and, as such, Benami Act has no application to Petition "A" & "B" Schedule Properties. He further deposed that, original title

deeds relating to Petition "A" & "B" Schedule Properties are with him. He further deposed that, the loan amount was discharged from his salary. Though, RW2 was cross-examined at length, nothing useful has been elicited to discredit the same. All the suggestions given to him were denied. However, it would be appropriate to extract few of the suggestions given:

"The witness adds that he is getting Rs.1,500-00 per month. It is true that I sold a site at Sramikanagar covering an extent of 165 sq. yards on 12.10.2010. It is not true to suggest that, I sold the said property for Rs. 25 lakhs. The witness adds that it was sold for Rs. 11,55,000-00. The properties which I purchased were with loans namely PF loan, HDFC loan, hand loans from Rama Raju and others. Ex.B15 does not contain my CPK, J & NV, J F.C.A. No. 3 of 2018 & batch signature as an attestor or identifying witness. It is not true to suggest that since the property covered in Ex.B15 is her sthreedhana property therefore, I was not present on the day. I have taken property valuation, I.T. Returns, legal opinion for applying loan in HDFC bank".

"It is not true to suggest that Ex.B14 and 15 were purchased with sthridhana of the petitioner. It is not true to suggest that I did not purchase the property covered under Ex.B14 and 15 with the amount I derived by obtaining loan from my Provident Fund."

"It is not true to suggest that I have taken loan from my Provident Fund for my personal reason and deposing false that it was taken to purchase property. There is no recital under Ex.B15 that I paid consideration for purchase of the said property. It is not true to suggest that as the property covered under Ex.B15 was in her possession since the date of purchase. Since I was in possession of the link document and original sale deed to prove that I purchased said property. It is not true to suggest that those documents were committed from the custody of petitioner and that she gave a report to police and police gave a certificate that they were not traced out."

"I did not file any suit for cancellation of the sale deed in favor of RW1."

39) From the evidence of RW2, it is clear that suggestions given to him disputing the manner in which he purchased the property were denied. On the other hand, answers came to be elicited that the documents were with him and he is in possession of the property. A vague suggestion came to be given that he has committed theft of these documents from his wife [PW1], but no material has been placed in support CPK, J & NV, J F.C.A. No. 3 of 2018 & batch the said suggestion. The suggestion that he did not purchase the property covered under Ex.B14 and Ex.15 was denied by him. Strangely, no suggestion was given to him that he was not in possession of the property and that his wife [PW1] is in possession of the same. Further there is no evidence on record to show that PW1 has any source to purchase the property.

40) Under these circumstances, it has to be seen now, whether the finding of the trial Court that RW2 is the owner of the property, is correct?

41) As stated earlier, the counsel appearing for the wife mainly submits that nothing in sub-section 1 to section 3 of The Benami Transactions (Prohibition) Act, 1988 apply, if the purchase of property by any person in the name of his wife or unmarried daughter, unless contrary is proved, it is to be presumed that the same is purchased for the benefit of the wife or unmarried daughter.

42) Dealing with the provisions of Benami Transactions (Prohibition) Act, the Hon'ble Supreme Court in para Nos. 10 and 11 of Om Prakash Sharma @ O.P.Joshi v. Rajendra Prasad Shewda & Ors, held as under:

2015 LF (SC) 867 CPK, J & NV, J F.C.A. No. 3 of 2018 & batch "10. The purchase of property by a husband in the name of his wife is a specie of Benami purchase that had been prevalent in India since ancient times. Such a practice appears to have been prevalent on account of the position of Hindu women to succession until the enactment of the Hindu Succession Act and the amendments made thereto from time to time. In a situation where a Hindu widow had a limited right to the estate of the deceased husband under the Hindu Women's Right to Property Act, 1937, the purchase of immovable property by a husband in the name of the wife in order to provide the wife with a secured life in the event of the death of the husband was an acknowledged and accepted feature of Indian life which even finds recognition in the explanation clause to Section 3 of the Benami Transactions (Prohibition) Act, 1988. This is a fundamental feature that must be kept in mind while determining the nature of a sale/purchase transaction of immoveable property by a husband in the name of his wife along with other facts and circumstances which has to be taken into account in determining what essentially is a question of fact, namely, whether the property has been purchased Benami. The "other" relevant circumstances that should go into the process of determination of the nature of transaction can be found in Jaydayal Poddar (Deceased) through L. Rs. & Anr. vs. Mst. Bibi Hazra & Ors. which may be usefully extracted below :-

"6. It is well settled that the burden of proving that a particular sale is benami and the apparent purchaser is not the real owner, always rests on the person asserting it to be so. This burden has to be strictly discharged by adducing legal evidence of a definite character which would either directly prove the fact of benami or establish circumstances unerringly and reasonably raising an inference of that fact. The essence of a CPK, J & NV, J F.C.A. No. 3 of 2018 & batch benami is the intention of the party or parties concerned; and not unoften, such intention is shrouded in a thick veil which cannot be easily pierced through. But such difficulties do not relieve the person asserting the transaction to be benami of any part of the serious onus that rests on him; nor justify the acceptance of mere conjectures or surmises, as a substitute for proof. The reason is that a deed is a solemn document prepared and executed after considerable deliberation, and the person expressly shown as the purchaser or transferee in the deed, starts with the initial presumption in his favour that the apparent state of affairs is the real state of affairs. Though the question, whether a particular sale is benami or not, is largely one of fact, and for determining

this question, no absolute formulae or acid test, uniformly applicable in all situations, can be laid down; yet in weighing the probabilities and for gathering the relevant indicia, the Courts are usually guided by these circumstances:

- (1) the source from which the purchase money came;
- (2) the nature and possession of the property, after the purchase;
- (3) motive, if any, for giving the transaction a benami colour;
- (4) the position of the parties and the relationship, if any, between the claimant and the alleged benamidar;
- (5) the custody of the title-deeds after the sale and (6) the conduct of the parties concerned in dealing with the property after the sale.

CPK, J & NV, J F.C.A. No. 3 of 2018 & batch The above indicia are not exhaustive and their efficacy varies according to the facts of each case. Nevertheless No. 1 viz. the source, whence the purchase money came, is by far the most important test for determining whether the sale standing in the name of one person, is in reality for the benefit of another.

(Emphasis is ours)

11. The reiteration of the aforesaid principles has been made in Binapani Paul v. Pratima Ghosh & Ors.[2]. The relevant part of the views expressed (Paras 26 and 27) may be profitably recollected at this stage. "26. The learned counsel for both the parties have relied on a decision of this Court in Thakur Bhim Singh v. Thakur Kan Singh wherein it has been held that the true character of a transaction is governed by the intention of the person who contributed the purchase money and the question as to what his intention was, has to be decided by:

- (a) surrounding circumstances,
- (b) relationship of the parties,
- (c) motives governing their action in bringing about the transaction, and
- (d) their subsequent conduct.

27. All the four factors stated may have to be considered cumulatively. The relationship between the parties was husband and wife. Primary motive of the transaction was security for the wife and seven minor daughters as they were not protected by the law as then prevailing. The legal position obtaining at the relevant time may be considered to be a relevant factor for proving peculiar circumstances existing and the conduct of Dr. Ghosh which is demonstrated by his having signed the registered power of attorney."

CPK, J & NV, J F.C.A. No. 3 of 2018 & batch

43) In Jaydayal Poddar (Deceased) through LRs and Ors v. Bibi Hazra and Ors.¹⁰, the Hon'ble Supreme Court held that, "essence of benami is intention of the party or parties concerned". Whether a particular sale is Benami or not, the Courts are usually guided by these circumstances:

- "(1) the source from which 'the purchase money came;
- (2) the nature and possession of the property, after the purchase;
- (3) motive, if any, for giving the transaction a benami color;
- (4) the position of the parties and the relationship, if any between the claimant and the alleged benamidar;
- (5) the custody of the title-deeds after the sale and (6) the conduct of the parties concerned in dealing with the property after the sale."

44) Valliammal By Lrs v. Subramaniam & Ors¹¹, was a case, where the suit land purchased by Ramayee Ammal wife of Original Plaintiff, executed a registered will in favour of her daughters the defendants/respondents herein. The Original plaintiff filed suit for declaration and permanent injunction against his daughters claiming that he got the sale deed executed in favour of his wife as benami and he is in possession of property. The Hon'ble Supreme Court reiterated AIR 1974 (SC) 171 (MANU/SC/0699/2004) CPK, J & NV, J F.C.A. No. 3 of 2018 & batch the six circumstances which can be taken as guide to determine the nature of transaction and held as under:

- 1) the source from which the purchase money came,
- 2) the nature and the possession of the property after purchase,
- 3) motive, if any, for giving the transaction a benami colour,
- 4) the position of the parties and the relationship, if any between the claimant and the alleged benamidar,
- 5) the custody of the title deeds after the sale and,
- 6) the conduct of the parties in dealing with the property after the sale

14. The above indicia are not exhaustive and their efficacy varies according to the facts of each case.

Nevertheless, the source from where the purchase money came and the motive why the property was purchased benami are by far the most important tests for determining whether the sale

standing in the name of one person, is in reality for the benefit of another."

45) In the case of Nand Kishore Mehra v. Sushil Mehra¹², the plaintiff filed a suit in High Court seeking relief in respect of properties alleged to have been purchased benami in the name of the defendant-wife. Learned Single Judge rejected the application filed by the defendant-wife in that suit seeking rejection of the plaint. On appeal, the Division Bench of the High Court reversed the order which came to be questioned by the Plaintiff- husband in appeal. The Hon'ble Apex Court held in paragraph no. 8 as under:

(1995) AIR 2145 CPK, J & NV, J F.C.A. No. 3 of 2018 & batch Since the plaintiff is the husband who had the right to enter into a benami transaction in the matter of purchase of property in the name of his wife or unmarried daughter, as we have held earlier, he is entitled to enforce his rights in the properties concerned if he can succeed in showing that he had purchased them benami in the name of his wife. But in view of the statutory presumption incorporated in sub-

section (2) of section 3 of the Act, he can get relief sought in the suit only if he can prove that the properties concerned had not been purchased for the benefit of the wife, even if he succeeds in showing that the consideration for the purchases of the properties had been paid by him.

46) From a reading of the above judgments, it is very clear, one can get the relief sought in the Suit only if he can prove that the property concerned was not purchased for the benefit of the wife, even if he succeeds in showing that consideration for purchase of property had been paid by him.

47) In the instant case, as seen from the evidence adduced, the claim of the wife that she purchased property from the funds raised by her through stridhanam or from the money given by her mother, was without any evidence. No iota of material has been placed to that effect. Apart from that, she in her evidence admits that the Agreement of Sale was entered into between the Vendor and her husband only and she was not a party to the Agreement of Sale. Subsequent to registration of property in her name, not only the documents of the property but also the "A" & "B" Schedule Properties were in the enjoyment of husband. It was not even suggested to RW2/Husband that the property was purchased for her benefit. That being the position, the argument of the learned CPK, J & NV, J F.C.A. No. 3 of 2018 & batch Counsel for the Appellant/Wife cannot stand the test of legal scrutiny. The wife did not establish (1) the source from where she got money for purchase of property; (2) the possession of the property was not with her after purchase; (3) custody of title deeds after purchase were with husband and, (4) it was the husband who was enjoying the property, which is evident from the evidence adduced.

48) It also appears from the evidence that, there was a "motive" to give the transaction a "benami colour" because of the differences between wife and husband, over a period of time, which as seen from the record, not only led to granting of divorce but also awarding maintenance while the self-sufficiency of the wife was doubted.

49) It is also to be noticed here that, F.C.A. No. 3 of 2018 filed by one Tarivittla Jagannadham, who is said to have purchased the property, contends that the husband and wife colluded together and sold the property to him and are now trying to deny his right over the property.

50) Sri. Mangena Sree Rama Rao, learned Counsel appearing for the Appellant in F.C.A. No. 3 of 2018, would submit that, the Appellant was not aware of the dispute between the wife and husband and that he has bonafidely purchased the property.

CPK, J & NV, J F.C.A. No. 3 of 2018 & batch

51) We are not in agreement with the contention raised by the learned Counsel for the Appellant in F.C.A No. 3 of 2018. The material on record clearly shows that, the Husband took all the steps in safeguarding petition "A" & "B" schedule properties. Ex.B51 reveals that a "Caution Notice Board" was erected by the Husband on 16.10.2011 mentioning the dispute pending before the Family Court. Ex.B45 shows that, the Husband also issued "Public Notice" in Eenadu Regional Newspaper in three areas i.e. Bhimli, Anakapalli and Visakhapatnam City, on 18.10.2011. In- fact, the Appellant in his cross-examination admits that, he did not see the public notice issued by the Husband in Eenadu Newspaper on 18.10.2011, issuing a caution to the general public not to purchase the property.

52) At this stage, it is to be noticed that, on 26.09.2011 the Husband filed I.A. No. 420 of 2011 in F.C.O.P. No. 143 of 2011 for temporary injunction restraining the wife from alienating the property. In the said I.A., notices were issued and the case was coming up for counter on 01.11.2011. Meantime, the wife sold the "B" schedule property to the Appellant on 19.10.2011. From the above, it stands established that the Husband has taken all safeguards to protect the Petition "A" & "B" Schedule Property.

CPK, J & NV, J F.C.A. No. 3 of 2018 & batch

53) In view of the above discussion, the trial Court was right in setting aside the Sale Deed and declaring the husband/Respondent [RW2] as the owner of the property. Accordingly, Issue No. (ii) is resolved upholding the Order of the trial Court.

III. Issue No. (iii) - Whether the trial Court was right in rejecting the claim of the Petitioner-Wife of permanent alimony?

54) As observed earlier, the judgment and decree granting divorce has not been challenged. An Appeal came to be filed as no permanent alimony was awarded by the Additional Family Court, Visakhapatnam.

55) It is not in dispute that under Section 24 of the Hindu Marriage Act, the Court can award permanent alimony while granting divorce.

56) A Division Bench of the High Court of Orissa in Smt. Sandhyarani Satapathy Alias ... V. Sachikanta Rath [MATA No. 127 of 2015] in paragraph No. 11 held as under:

"11. On perusal of the impugned judgment, it evinces that learned Judge, Family Court, Berhampur has not recorded any finding with regard to grant of permanent alimony to the wife although he has granted the relief of divorce. Grant of permanent alimony is a rule while passing a decree of divorce, while refusal is an exception. The Court has to record reasons for not making an order for permanent alimony. The Court CPK, J & NV, J F.C.A. No. 3 of 2018 & batch has to record finding on the permanent alimony although no application is filed or no prayer is made to that effect. Thus, in our opinion, learned Judge, Family Court, Berhampur has committed gross error in not recording any finding on 'permanent alimony'. Hence, instead of remitting the matter back for the said purpose, we, taking into consideration the rival pleadings of the parties, materials available on record and submissions made at the Bar, proceed to address the said issue."

57) A perusal of Exs.B30, B31 and B32 would show that, the wife has got bank accounts and fixed deposits in her name. But, these exhibits do not disclose the quantum of amounts lying in the bank accounts and in fixed deposits. In- fact, the husband [RW2] categorically admits in his evidence that the Wife has developed source of income after the sale of property. It is true that, after the sale of Petition "B" Schedule Property, the Wife got enriched herself, but, however, in view of the findings given now with regard to execution of Sale Deed, the source of income to Wife gets narrow down.

58) The wife has been fighting the litigation since more than 10 years and keeping the age of the parties in mind, we are of the opinion that not granting of permanent alimony to wife might lead to severe hardships and to secure her well-being, we are of the view that it would be reasonable if a direction is given to the husband to pay a sum of Rs.3,50,000/- (Rupees Three Lakhs Fifty Thousand Only) to the wife by way of CPK, J & NV, J F.C.A. No. 3 of 2018 & batch permanent alimony. This amount of permanent alimony will be paid to the wife within three months from the date of this Judgment.

59) Accordingly, the F.C.A. No. 3 of 2018 and F.C.A. No.216 of 2018 are dismissed; while F.C.A. No. 133 of 2019 is partly allowed. No order as to costs.

60) Consequently, miscellaneous petitions, if any, pending shall stand closed.

----- JUSTICE C. PRAVEEN KUMAR
----- JUSTICE VENKATESWARLU
NIMMAGADDA Date: 05.08.2022 Note: LR copy to be marked.

S.M...

CPK, J & NV, J F.C.A. No. 3 of 2018 & batch THE HONOURABLE SRI JUSTICE C.PRAVEEN KUMAR AND THE HONOURABLE SRI JUSTICE VENKATESWARLU NIMMAGADDA & DATE: 05.08.2022 S.M...